

Diary No.39801 of 2026

Vishal Ahmad Shakir.

Mian Muhammad Shahbaz Sharif, etc.

Objection Case

24.03.2026 Mr. Amir Saeed Rawn, Advocate for the petitioner.

Learned counsel for the petitioner has reiterated the points, factors, and grounds raised in the petition. Additionally, it has been argued that the acquittal of respondents No. 1 and 2 is neither supported by the evidence on record nor in accordance with the law, and that the office wrongly raised objections. The acquittal of the respondents Nos.1 and 2 by virtue of judgment dated 12.10.2022, passed by Ijaz Hassan Awan, the then learned Special Judge (Central-I), Lahore, has been challenged in this criminal revision under section 10(1) of the Pakistan Criminal (Amendment) Act 1958, read with Section 439 and all other enabling provisions of the Code of Criminal Procedure 1898, by the petitioner, who is an advocate by profession, as indicated in the memo of the parties. The petitioner is a private person not connected with the case. In response to the court's query, the learned counsel for the petitioner stated that the petitioner had the right to file this petition against the acquittal of respondents No.1 and 2, as the prosecution has not challenged it even after approximately 3 years and 4 months and relied on the case of Abdul Rashid versus Arshad Ali and 2 others, reported as 2000 YLR 2619. In this case, as already noted, it was neither pleaded nor proven that the criminal revision was filed because the petitioner had the legal right to challenge the acquittal of respondents No. 1 and 2. Therefore, this court cannot rely on its decision in Abdul Rashid versus Arshad Ali and 2 others, reported as 2000 YLR 2619. Therefore, the judgment relied upon by the counsel for the petitioner

does not apply to the facts and circumstances of the instant case. The aforementioned revision petition was filed by the petitioner, who, no doubt, had not lodged the F.I.R. No. 39 of 2020, dated 14.11.2020, at the police station FIA/ACC, Lahore. Rather, the State, through the FIA Anti-Corruption Circle Lahore, lodged the same. At the same time, there can be no denial of the fact that F.I.R. in the instant case was registered upon the report of the FIA Anti-Corruption Circle Lahore, and not by the petitioner in any way. Even otherwise, the judgment of acquittal could be assailed by the FIA Anti-Corruption Circle, Lahore, through prosecution, as provided by law. As such, a question arises as to whether the petitioner has locus standi to assail the conviction/acquittal in a case never registered at his instance. The answer to the proposition is certainly in the negative, on the bare aspect that the machinery of law was not set into motion on the behest of the petitioner. No grievance could accrue to the petitioner, who, thus, had no locus standi to file a revision petition. On Court's query, learned counsel could not point out any illegality in the judgment under challenge. The judgment of the trial court, attached to the present petition, shows that the trial court clearly found that, based on the prosecution's evidence, no incriminating material was gathered against respondents Nos. 1 and 2; therefore, the prosecution's case should be rejected. When the trial court identifies serious flaws in the prosecution's case, it is essentially compelled to accord the accused the benefit of the doubt, in accordance with established principles of criminal law. After thoroughly reviewing the impugned judgment, this court believes that the trial court had the advantage of examining the entire record, and the reasons for acquittal are reasonable and consistent with legal principles. An acquittal by the trial court should not be overturned unless it is completely unreasonable, entirely unsupported, or based upon sketchy or artificial reasons.

2. It is also relevant to mention here that this criminal revision has been filed under section 10(1) of the Pakistan Criminal Law (Amendment) Act, 1958 (hereinafter being referred to as “Act”), read with section 439 of the Code of Criminal Procedure, 1898 (hereinafter being referred to as “Code”). Section 10 of the Act is hereby reproduced for ready reference:-

10. Appeal, revision and transfer of cases.

(1) An appeal from the judgment of a Special Judge shall lie to the highest Court having appellate jurisdiction in the territorial limits in which the offence is tried by the Special Judge, and the same Court shall also have powers of revision.

(2) Notwithstanding the provisions of Section 417 of the Code of Criminal Procedure, 1898, in any case tried by a Special Judge appointed by the [Federal Government] under Section 3, in which such Special Judge has passed an order of acquittal, the [Federal Government] may direct the Public Prosecutor to present an appeal to such Court as aforesaid.

Perusal of Section 10(1) of the Act reveals that an appeal from the judgment of a Special Judge shall lie to the highest Court having appellate jurisdiction. It is categorically mentioned in Sub-section 2 of Section 10 of the Act, which is non-obstante clause beginning with the words “Notwithstanding, the provisions of Section 417 of the code” in any case tried by the Special Judge, where the Special Judge has passed an order of acquittal, the Federal Government may direct the Public Prosecutor to present an appeal to such Court as aforesaid. So, under section 10(2) of the Act, only with the direction of the Federal Government the Public Prosecutor can file an appeal against an acquittal order passed by the learned Special Judge; so, in the light of famous The Latin maxim “*A Communi Observantia non est-recedendum*” means “*There should be no departure from common observance or usage*” i.e. when a thing has been prescribed

to be done in a particular manner, it should be done in that manner only and not by other means. So, only the Public Prosecutor can file an appeal against the impugned order of acquittal. Furthermore, regarding Section 439 Cr.P.C., it is sufficient to note that Section 439(5) of the Code clearly states that if an appeal is available and no appeal is filed, then no revision proceedings should be entertained.

3. In view of what has been discussed above, on the one hand, the instant revision petition filed against the order of acquittal is not maintainable, and thus the objection raised by the office at Sr. No.16 is valid; hence it is sustained. On the other hand, the impugned order of acquittal, even otherwise, does not contain any illegality.

4. Since the aforementioned objection has been sustained, the objections raised by the office of this court at serial Nos. 6, 7, and 12(c) have lost their relevance.

(Aalia Neelum)
Chief Justice

Approved for reporting

Chief Justice

*This order has been
dictated, pronounced,
prepared, and signed on
24.03.2026*

*Ikram**